

m2this

October 29, 1956

Mr. Gus Garcia
Yoakum Street
Kingsville, Texas

Dear Gus:

Some months ago I prepared for DeAnda a brief on "GROUPING ON BASIS OF TEST." Be sure and read that before you have a hearing or trial. The pedagogical arguments noted there are basal to your case. There I quote authorities of unquestioned eminence. Now, as to the possible agreed judgment:

1. The overall injunction of the Delgado case should be included, except that no mention should be made of the First Grade (see below for reason).

2. Include in the judgment: The classification of children on the basis of home language is contrary to the history and traditions of the American School, and part of the genius of American education is that children of many nationalities and tongues have been classed together in unitary schools and classes and, because of their very diversity as to national origins and languages, through inter-action they have converted themselves into Americans. The practice of classifying children into separate schools and-or classes because of home language is enjoined (this sentence, of course, needs your re-wording). (If you can get this in the judgment we will have a good precedent for eliminating separation in the First Grade elsewhere).

3. The division of grades into sections on the basis of general achievement tests or of mental tests ignores the findings of the highest educational authorities in the nation. (see the brief to De Anda mentioned above.) "Homogeneous grouping" is defensible only for intra-class purposes, and then only for very narrow aspects of subject matter. Furthermore, the "cutting point," the score or mark that divides one section from another is arbitrary and capricious one. Further, still, it is an established pedagogical fact that a desired grade norm, e.g. "Fourth Grade," is but a central tendency (that is, an average) which is established nationally by a distribution of achievement scores that ranges from two or more grades below that norm to two or more grades above it. That is, it is perfectly "normal" for a Fourth Grader to achieve at the Second Grade level in one or all of his subjects, or at the Sixth Grade. Even further, a Fourth Grade child achieving Second Grade in reading may well achieve Sixth Grade in Penmanship or Arithmetic. So, wholesale grouping on an average of test results is unrealistic in so far as efficient instruction in the various subject-matter fields is concerned. The practice of "sectionizing" on the basis of tests is a discredited one and is enjoined.

4. Children should be sectionized indiscriminately. That is, if there are fifty children in one grade, throw the names in a barrel, shake it up, and then (without reference as to whether they have Anglo or Latin names, without reference as to the average of test results, and without reference to the part of town they live in or who their parents are) put twenty-five here and twenty-five there. What will happen if there are twenty-five Latins and only three Anglos? Or, vice versa? Just what has happened throughout the history of American Education; the good old process of acculturation, which has produced Americans. After all, Americans are not English-men -- nor are they Italians, or Poles, etc. And it was by this process of indiscriminate grouping that we became Americans.

As to point number two above: all authorities agree that the best way to learn a language (English here) is in classes where some of the students are native to that language. There is no evidence that mixing Latins and Anglos in classes retards the Anglos -- that contention is simply an argument of convenience. (see my bulletin on "Concerning Segregation..."). Phone me if you need more.

I am doing this in a hurry (and at home) so I am not as organized as is my "norm" -- Don't let them confuse the issue with the argument about migrants who come in late, etc. "We are not talking about migrants, or cripples, or delinquents -- they are special problems to be solved by special means (which may or may not be challenged as to their legality)." We are concerned now with the overall policies and practices affecting children of Mexican descent. If, later, we should have to check on the treatment of migrants we can deal with that as the facts and the law warrant.

Stay with it, my friend.

George